

Sita Ram v. State of U.P. and others

Allahabad High Court · Division Bench · 28 August 2017 · Writ - C No. 30393 of 2011 · **Writ dismissed for want of prosecution.**

HEADNOTE

Writ challenging a theft-of-electricity recovery certificate dismissed for want of prosecution. An earlier Division Bench had issued notice and stayed recovery of Rs. 2,30,979 subject to deposit of Rs. 1,15,000. Compliance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 was not decided.

FACTUAL SUMMARY

The petitioner challenged a Recovery Certificate dated 16.6.2010 sent to the Collector, Mathura, for Rs. 2,30,979 plus charges on alleged electricity theft, asserting that no notice was given and the Electricity Act, 2003 and U.P. Electricity Supply Code, 2005 were not followed. On 24 May 2011 the Court issued notice and stayed recovery subject to deposit of Rs. 1,15,000. After an intervening dismissal and restoration, the writ was dismissed for want of prosecution on 28 August 2017.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

theft recovery — dismissal for want of prosecution

HOLDING

The writ petition challenging a recovery certificate for alleged theft of electricity was dismissed for want of prosecution. The Court did not decide whether the recovery complied with the Electricity Act, 2003 or the U.P. Electricity Supply Code, 2005. An earlier interim stay of recovery, conditional on deposit of Rs. 1,15,000, was overtaken by the dismissal.

¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 16.6.2010 FOR ALLEGED THEFT OF ELECTRICITY COMPLIED WITH THE ELECTRICITY ACT, 2003 AND THE U.P. ELECTRICITY SUPPLY CODE, 2005, INCLUDING NOTICE AND HEARING.

Raised at the 24.5.2011 listing; never decided on merits. ¶ 1